

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JAIRO ESPINOSA,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
P.O. MICHAEL J. LAGANI, Shield # 22397, and
P.O. NICHOLAS V. JUSINO, Shield # 3472,Defendants.

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Index No.:

Date purchased: 5/3/23

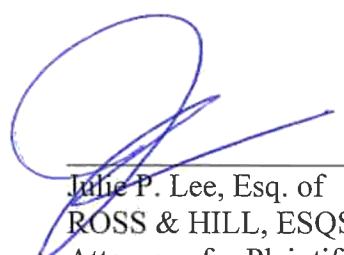
Plaintiff designates
BRONX County
as the place of Trial.**SUMMONS**The basis of the venue is
Place of Occurrence:
BRONX, NEW YORK

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York

May 3, 2023



Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
Bronx, New York 11241
718-855-2324

Notice: The nature of this action: negligence; personal injuries; assault; battery; excessive force; unlawful detention; false arrest; false imprisonment; violation of civil rights.

The relief sought is monetary damages: compensatory damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from May 25, 2022 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X Index No.:
JAIRO ESPINOSA,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
P.O. MICHAEL J. LAGANI, Shield # 22397, and
P.O. NICHOLAS V. JUSINO, Shield 3472,Defendants.
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Plaintiff herein, by his attorneys, Ross and Hill, Esqs., complaining of the above-named defendants, respectfully shows to the Court and allege the following upon information and belief:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Bronx, City and the State of New York.

2. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant **NEW YORK CITY POLICE DEPARTMENT** is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. At all times hereinafter mentioned, defendant **P.O. MICHAEL J. LAGANI**, Shield # 2239, was and still is a resident of the State of New York.

5. At all times hereinafter mentioned, defendant **P.O. MICHAEL J. LAGANI**, Shield # 2239, was and still is a resident of a sister State.

6. At all times hereinafter mentioned, defendant **P.O. NICHOLAS V. JUSINO**, Shield # 3472, was and still is a resident of the State of New York.

7. At all times hereinafter mentioned, defendant **P.O. NICHOLAS V. JUSINO**, Shield # 3472, was and still is a resident of a sister State.

8. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the **NEW YORK CITY POLICE DEPARTMENT** including all the police officers thereof.

9. At all times hereinafter mentioned, defendants **P.O. NICHOLAS V. JUSINO**, Shield # 3472 and **P.O. MICHAEL J. LAGANI**, Shield # 2239 were employed by the **NEW YORK CITY POLICE DEPARTMENT**.

10. On or about August 4, 2022, plaintiff's Notice of Claim was made and served upon the defendants, said service occurring within ninety (90) days of the incident giving rise to this lawsuit.

11. That more than thirty (30) days have elapsed since the service of said Notice of Claim and adjustment or payment of plaintiff's claim has been neglected or refused.

12. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

AS AND FOR A FIRST CAUSE OF ACTION

13. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-12 hereof with the same force and effect as though fully set forth herein at length.

14. That on May 25, 2022 at approximately 12:00 p.m., plaintiff was unlawfully stopped on River Avenue at or near 161st Street, Bronx, New York.

15. That at said time, defendants, without consent, unlawfully searched plaintiff.

16. That at said time, defendants unlawfully placed handcuffs on plaintiff.

17. That defendants, without reasonable or probable cause, falsely arrested and handcuffed plaintiff.

18. That defendants **P.O. NICHOLAS V. JUSINO**, Shield # 3472 and **P.O. MICHAEL J. LAGANI**, Shield # 2239 unlawfully searched, handcuffed, and arrested plaintiff.

19. That the arrest of plaintiff constituted false arrest.

20. The incident as described above, resulted from the negligence of the defendants, their agents, servants, and/or employees, with no negligence on the part of the plaintiff contributing thereto.

21. That defendants acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

22. The false arrest of plaintiff by defendants, their agents, servants, and/or employees, caused plaintiff pain, suffering, humiliation and personal injury.

23. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-12 and 13-23 hereof with the same force and effect as though fully set forth herein at length.

25. After falsely arresting plaintiff, defendants handcuffed plaintiff and unlawfully detained plaintiff in police custody.

26. That defendants **P.O. NICHOLAS V. JUSINO**, Shield # 3472 and **P.O. MICHAEL J. LAGANI**, Shield # 2239 unlawfully detained plaintiff.

27. That plaintiff was taken to the 44th Precinct a/k/a Yankee Stadium Precinct.

28. The unlawful detention of plaintiff was without any cause or justification.

29. The incident as aforescribed resulted from the negligence of the defendants, their agents, servants, and/or employees, with no negligence on the part of the plaintiff contributing thereto.

30. That defendants acted intentionally, maliciously, wantonly, and with deliberate disregard for plaintiff's interests.

31. The unlawful detention of plaintiff by the defendants, their agents, servants, and/or employees, caused plaintiff pain, humiliation, and personal injury.

32. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-12, 13-23, and 24-32 hereof with the same force and effect as though fully set forth herein at length.

34. That the unlawful detainment, arrest, and imprisonment constituted false imprisonment.

35. That defendants **P.O. NICHOLAS V. JUSINO**, Shield # 3472 and **P.O. MICHAEL J. LAGANI**, Shield # 2239 unlawfully imprisoned plaintiff.

36. That plaintiff was fingerprinted.

37. That plaintiff was photographed.

38. That plaintiff was placed in a holding cell.

39. That plaintiff was released from police custody at approximately 9:00 p.m. on May 25, 2022.

40. That the incident as aforescribed resulted from the negligence of the defendants, their agents, servants, and/or employees, with no negligence on the part of the plaintiff contributing

thereto.

41. That defendant police officers acted intentionally, maliciously, wantonly, and with deliberate disregard for plaintiff's interests.

42. The false imprisonment of plaintiff by defendants, their agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

43. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-12, 13-23, 24-32, and 33-43 hereof with the same force and effect as though fully set forth herein at length.

45. In placing plaintiff under arrest, defendants used excessive and unjustified force, struck him in the face and body, and intimidated plaintiff.

46. That in placing plaintiff under arrest, defendant **P.O. NICHOLAS V. JUSINO**, Shield # 3472 used excessive and unjustified force, struck him in the face and body, and intimidated plaintiff.

47. That in placing plaintiff under arrest, defendant **P.O. MICHAEL J. LAGANI**, Shield # 2239 used excessive and unjustified force, struck him in the face and body, and intimidated plaintiff.

48. The actions of defendants constituted an assault and battery.

49. As a result of the assault and battery committed by defendants, plaintiff sustained personal injuries.

50. That the incident as aforescribed resulted from the negligence of the defendants, their agents, servants, and/or employees, with no negligence on the part of the plaintiff contributing

thereto.

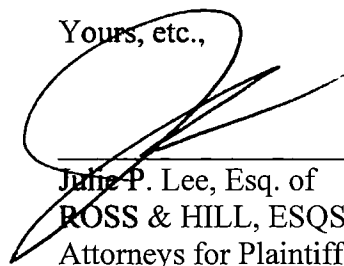
51. That defendants acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

52. That the assault and battery of plaintiff by defendants, their agents, servants, and/or employees, caused plaintiff pain, humiliation, and personal injury.

53. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demands judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Yours, etc.,



Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
Brooklyn, New York 11241
718-855-2324

ATTORNEY VERIFICATION

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am an Associate in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

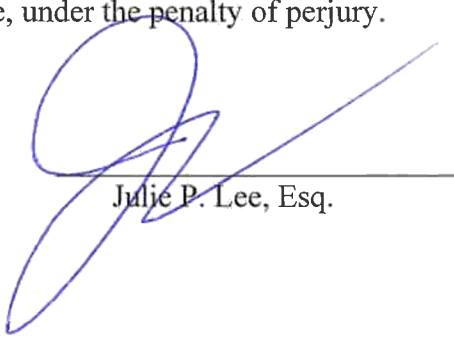
The reason this verification is made by me and not by the plaintiff is that plaintiff is presently outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff, investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York

May 3, 2023



Julie P. Lee, Esq.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JAIRO ESPINOSA,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
P.O. MICHAEL J. LAGANI, Shield # 22397, and
P.O. NICHOLAS V. JUSINO, Shield # 3472,**

Defendants.

SUMMONS & VERIFIED COMPLAINT

**ROSS AND HILL, ESQS.
Attorneys for Plaintiff
Office and Post Office Address
16 Court Street, 35th Floor
NEW YORK, New York 11241
Tel (718) 855-2324
Fax (718) 855-4617**

To: **Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for
